SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 08/21/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0010022

PRESIDING: HON. MARK A. TALAMANTES

REPORTER: CLERK: M. GIL

PLAINTIFF: MICHAEL BOROKHOVICH vs. DEFENDANT: VOLKSWAGEN A.G., A MULTINATIONAL CORPORATION, ET AL	

NATURE OF PROCEEDINGS: 1) DEMURRER
2) DEMURRER
3) DEMURRER

RULING

Defendant Volkswagen A.G. made a special appearance on July 2, 2026, to file a motion to quash service of summons and complaint. The motion also sought an order dismissing the claims against it for lack of personal jurisdiction. The motion was GRANTED WITHOUT PREJUDICE, because Plaintiff did not file a response, nor was an opposition to the motion filed. (The failure to oppose is considered consent to the granting of the motion. (Cal. Rules of Court, rule 8.54(c); Local Rule Marin, Civil 2.8G.1.))

Defendant filed a proposed order dismissing the defendant *with prejudice*. The court signed the order on August 7, 2026; however was never entered. That order is hereby vacated, with the Defendant ordered to correct and file the order of dismissal without prejudice.

Plaintiff filed an *ex parte* request to set aside that prior order pursuant to CCP §473(b), to explain that the Plaintiff did not respond to the *ex parte* due to improper service. The *ex parte* was heard on August 12, 2026, and was DENIED.

Plaintiff argues that the email notice of hearing was sent to the wrong address. Plaintiff's counsel confirms that notice was sent to her work email by the Defendants, and not to the firms' dedicated e-mail service account "eservicewarrantylaw@squirepb.com." In the court's view, Plaintiff was served because counsel for Plaintiff acknowledged that the email was sent to her work email address. Therefore, the counsel's firm received notice of the motion.

The court also advised Defense counsel that it would likely grant a request by Plaintiff's counsel to set aside the order re: motion to quash service based on this emailing error.

The court anticipates that the parties have met and conferred and that the matter has been resolved so the case can now move forward. If the lawyers have not resolved the issue, the Defendant may request a rehearing on the motion to quash service, with the Plaintiff provided with the opportunity file an opposition.

Appearances are required.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are driving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 08/21/26 TIME: 1:30 P.M. DEPT: H CASE NO: CIV2200568

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER: CLERK: ALINA ANDRES

PLAINTIFF: NAOMI TSEGGAI, ET AL

vs.

DEFENDANT: WESTERN VILLAGE OAKS ASSOCIATION, ET AL

NATURE OF PROCEEDINGS: MOTION – SUMMARY JUDGMENT

RULING

Appearances required.

Based on the papers submitted in connection with this motion, both Plaintiffs Naomi Tseggai and Ghenet Tekie ("Plaintiffs") and Defendant Dollar Tree Stores, Inc. ("Dollar Tree") believe that under the operative pleading, Plaintiffs' May 31, 2022 First Amended Complaint ("FAC"), Dollar Tree faces potential products liability in relation to a helium balloon.

Plaintiffs have not sued Dollar Tree, or any defendant currently involved in this case (as opposed to numerous yet-to-be-identified Doe defendants) for products liability. The only defendants sued for products liability are Doe Nos. 51-80. (See FAC, p. 7.) Dollar Tree is Doe No. 4. (See May 31, 2024 Doe Amendment.) No Doe defendant within the Nos. 51-80 range has yet been identified. The identified Does are No. 1 (RealManage, LLC, identified November 1, 2022); No. 2 (Azar Mahban, identified April 28, 2023); No. 3 (Barbier Security Group, identified September 22, 2023); and No. 4 (Dollar Tree). Plaintiffs likewise have not alleged that Dollar Tree, or any defendant who has been identified thus far, did anything in relation to a helium balloon. The only defendants the FAC describes as doing anything in relation to a helium balloon are the *unidentified* Doe Nos. 51-80. (FAC, p. 7.) This means the allegations surrounding the helium balloon cannot support the *identified* defendants' liability on any theory. For Plaintiffs to hold any of the defendants who have been identified thus far liable on a products liability theory, or on any other theory based on conduct involving a helium balloon, they would need to amend their complaint.

Dollar Tree recognizes that it is a target of the products liability claim even though that cause of action is not alleged against it. (Memorandum, p. 11, fn. 2.) Dollar Tree elected not to take advantage of this and instead challenges the products liability claim on its merits. The Court appreciates Dollar Tree's willingness to overlook what was obviously an oversight by Plaintiffs'